

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

BED BATH & BEYOND INC. v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

DECLARATION OF J. LEE HILL

I, J. Lee Hill, declare as follows:

1. I am an associate of the law firm Huth Reynolds LLP (“HR LLP”), which has served as counsel of record for Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant”) since this action was filed.

2. I submit this Declaration in support of Complainant’s (1) Motion for Permission to File Proposed Verified Second Amended Complaint Against Respondents (the “Motion to Amend”) and (2) Motion to File Under Seal Complainant’s Proposed Verified Second Amended Complaint (the “Motion to Seal” and, together with the Motion to Amend, the “Motions”), filed contemporaneously herewith.

3. Pursuant to the Protective Order entered by the Presiding Officer in this case on July 28, 2023 (the “Protective Order”), Complainant’s counsel sought in good faith to determine the position of Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (together, “Respondents” and, together with Complainant, the “Parties”) regarding Complainant’s Motions.

4. On November 15, 2024, Complainant's counsel sent Respondents' counsel an unverified draft of the proposed Verified Second Amended Complaint (the "2AC") in connection with an inquiry as to whether Respondents intended to oppose either of the Motions.

5. On November 15, 2024, Respondents' counsel replied via email that Respondents oppose the instant motion.

6. In response to Complainant counsel's inquiry, Respondents' counsel did not indicate that Respondents oppose the Motion to Seal.

7. To the best of my knowledge, information, and belief, I declare under penalty of perjury that the foregoing is true and correct.

Executed on November 15, 2024.

A handwritten signature in black ink, reading "Lee Hill", written over a horizontal line.

J. Lee Hill

Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing copies of the document to their counsel of record listed below:

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Counsel for Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited

Dated: November 15, 2024

A handwritten signature in black ink, appearing to read "Lee Hill", written over a horizontal line.

J. Lee Hill

*For Complainant 20230930-DK-Butterfly-1,
Inc., formerly known as Bed Bath & Beyond Inc.*